

		Petition, were properly served on the Department of Motor Vehicles ("DMV"). Petitioner is to serve the DMV with a copy of the Petition, along with his prior <i>ex parte</i> papers, the 8/4/26 Order, his Notice of Lodgment, and a Notice of Continued Hearing on Petition which shows the new hearing date, in the same manner as service of summons per C.C.P. § 415.10 et seq. A Proof of Service reflecting compliance is to be promptly filed in this action. <i>Petitioner is to give notice of this ruling.</i>
3.	Avalos v. Summerville at Cobbco Inc. 25-1536262	Before the Court is a motion by Defendants Summerville at Cobbco, Inc. (Summerville) dba Brookdale Garden Grove and Emeritus Corporation (Emeritus) (collectively, Defendants) whereby they seek to disqualify plaintiff's counsel Stephen Hunter (Hunter) and his law firm Hunter Law, PC from serving as counsel for plaintiffs Andres A. Avalos, by and Through His Successor In Interest, Karina Jones, Gustavo Avalos, Jorge Avalos (collectively, Avalos). For the reasons set forth herein, the motion is DENIED. The Court notes initially that Defendants submitted 980 pages of exhibits at ROA 52 and failed to bookmark the document. Counsel is admonished to take the necessary steps to ensure future compliance with the Rules of Court as the Court requires strict compliance with <i>CRC, rule 3.1110 (f) (4)</i> which requires electronic exhibits to include electronic bookmarks with the links to the first page of each exhibit, and with bookmarked titles that identify the exhibit number or letter and briefly describe the exhibit. The within matter is brought on the grounds that Hunter, during the time he was a partner at the Pleiss Sitar law firm, represented Summerville and Emeritus in four elder abuse actions where they were named as defendants. The Defendants argue disqualification is appropriate under <i>California Rules of Professional Conduct, Rule 1.9</i>, which provides in part that a "lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent." The Court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (<i>Code Civ. Proc., §128(a)(5)</i>.) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex Asbestos Litig.</i> (1991) 232 Cal.App.3d 572, 585.) "Where the potential conflict is one that arises from the successive representation of clients with potentially adverse interests, the courts have recognized that the chief fiduciary value jeopardized is that of client confidentiality." (Flatt v. Superior Court (1994) 9 Cal.4th 275, 283.) "Thus, where a former client seeks to have a previous attorney disqualified from serving as counsel to a successive client in litigation adverse to the interests of the first client, the governing test requires

that the client demonstrate a 'substantial relationship' between the subjects of the antecedent and current representations." (Id.)

Defendants submit documents from four cases where Hunter was defense counsel in elder abuse cases. However, the defendants in this case (Emeritus and Summerville) are only named in the *Cheifer* and *National Coalition* cases and Defendants do not explain documents from the Tegeler and Loukides cases are relevant when the Defendants were not named as parties in those actions. The documents submitted consist of the plaintiffs' complaints, defense discovery responses and Hunter's billing. Laura Sitar, a partner at the Pleiss Sitar firm, submits a declaration authenticating the documents and also stating that "Mr. Hunter was intimately engaged in the defense" of the Defendants. (Sitar Decl. ¶¶7, 9) There are no declarations from either Emeritus or Summerville.

The question therefore is whether defendants have submitted evidence to "establish that any confidential information about the defense in those cases would be at issue in this case." (*Khani v. Ford Motor Co.* (2013) 215 Cal. App. 4th 916, 922) The *Khani* case is persuasive. In *Khani v. Ford Motor Co.*, an attorney who worked for Ford's counsel left the firm and went to work for a lemon law firm which represented plaintiffs. The lawyer then filed, on behalf of a plaintiff, a Song-Beverly case against Ford. Ford argued the lawyer was disqualified because the attorney had represented Ford in numerous lemon law cases. The DCA disagreed and made clear that simply because the prior cases involved claims under the same statute, "[t]he substantial relationship test does not subject an attorney to automatic disqualification on this ground alone." (*Khani v. Ford Motor Co.* (2013) 215 Cal.App.4th 916, 922) Avalos cited the *Khani* case at length in his opposition and Defendants' reply ignored the cited authority.

Here, the evidence submitted shows that in the *Cheifer* case, Hunter represented Emeritus in connection with its operation of the Corona Brookdale facility. In the *National Coalition* case, Hunter represented Summerville in connection with its operation of the Brookdale Chatsworth facility. There is no evidence that Avalos or any of the people involved in his care were involved in the cases arising from incidents at the Corona or Chatsworth facilities. What is missing is a declaration from defendants explaining the relationship between Avalos' case and the four cases Mr. Hunter worked on. Defendants fail to connect a single confidence learned in Hunter's prior representation of the defendants that relates to the Avalos litigation.

The Court notes that Defendants point to a single billing entry on 12/15/21 where Hunter billed 1.2 hours for "review and evaluate privileged file from Brookdale Corona." (Motion at 2:27-28) While Defendants repeatedly argue this is a significant entry, there is no declaration explaining what privileged documents were reviewed. Based on the Court's review of the billing entries surrounding the 12/15/21 entry, there is no reason to believe this entry related to anything more than reviewing a case specific file such as the plaintiff's medical records.

		Defendants also argue the work done by Mr. Hunter “ordinarily requires counsel to learn how the represented entity is organized, who controls relevant policies, what records exist and where they are maintained, how the client evaluates employees and witnesses, what defenses and discovery positions it adopts, and how it evaluates exposure and settlement.” (Reply at 4:3-5) While such may “ordinarily” occur, there is no declaration that such took place in this case. Based on evidence submitted, Defendants have failed to show that any confidential information learned through Hunter’s prior representation would be at issue in this case. Moreover, Hunter submits evidence in opposition showing that “each representation concerned a different facility, resident, factual record, alleged injury and subject matter.” (Hunter Decl. ¶5; see also ¶¶7, 8, 10-13 22) Plaintiff’s objections to the declaration of Laura Sitar are OVERRULED. Plaintiff’s objections to the declaration of Cadmus Wang are SUSTAINED (hearsay, speculation, foundation, improper opinion). For the foregoing reasons, the motion is DENIED. <i>Plaintiff shall give notice.</i>
4.	Pham v. Pham Lopez 25-1504410	Before the court are the following two motions: (1) motion for leave to amend complaint brought by plaintiff Hien Minh Pham (Plaintiff); and (2) motion to expunge lis pendens filed by defendants Michelle Ngo Pham Lopez, Francisco Humberto Lopez, Thuy Thanh Vorpahl, and Travis D. Vorphal (collectively, Defendants). As set forth below, motion 1 is GRANTED. Motion 2 is CONTINUED to October 15, 2026, at 1:30 p.m. in Department C20. Motion No. 1: Motion for Leave to Amend Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; see also, <i>Code Civ. Proc.</i>, § 473(a)(1).) Plaintiff has shown the interests of justice support granting the motion as the amendments appear necessary to a complete determination of the action. Plaintiff was diligent in seeking amendment as this motion was filed approximately one month after Plaintiff retained counsel. Given counsel needed time to consult with his client and familiarize himself with the case, filing this motion one month after counsel was retained does not seem unreasonable.